

HOUSE BILL 387

By Butler

AN ACT to amend Tennessee Code Annotated, Title 63
and Title 68, relative to healthcare providers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) As used in this section, "healthcare provider":

(1) Has the same meaning as defined in § 63-1-117(k);

(2) Includes an employee, assistant, or contractor of such professional,
establishment, or facility; and

(3) Does not include a psychiatrist or psychologist licensed pursuant to
chapter 6 or 11 of this title.

(b) A healthcare provider shall not:

(1) Inquire as to the patient's ownership, possession of, or access to
firearm ammunition or firearm accessories;

(2) Require information described in subdivision (b)(1) to be disclosed
before providing treatment to the patient;

(3) Deny future treatment of a patient based upon a patient's ownership
or control of a firearm, firearm ammunition, or firearm accessories;

(4) Enter, or have another enter, information described in subdivision
(b)(1) into a patient's record unless the information is relevant to the patient's
medical care or safety or the safety of others; or

(5) Share the information described in subdivision (b)(1) with an insurer.

(c) A healthcare provider shall not discriminate against a patient based upon the patient's exercise of the constitutional right to own and possess a firearm, firearm ammunition, or firearm accessories.

(d) If a healthcare provider does inquire as to the patient's ownership, possession of, or access to firearm ammunition or firearm accessories, then the healthcare provider shall provide written notice to the patient that the patient has no duty to respond to the inquiry.

(e)

(1) A healthcare provider who violates subsection (b) or (c) is guilty of unethical conduct and is subject to:

(A) Disciplinary action by the healthcare provider's licensing authority; and

(B) A fine of one thousand dollars (\$1,000) per violation.

(2) In addition to other penalties available to the provider's licensing authority, the healthcare provider's licensing authority may take disciplinary action and seek injunctive or other relief as appropriate against that healthcare provider or an entity for a violation of this section.

SECTION 2. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.